Township of NIPISSING
"Life the way it should be" ESTABLISHED 1888

The Corporation of the Township of Nipissing
45 Beatty Street
Nipissing ON P0H 1W0
Telephone 705-724-2144 Fax 705-724-5385
www.nipissingtownship.com

REPORT TO COUNCIL

Date: July 10, 2025

From: Dan MacInnis, Operations Superintendent
Kris Croskery-Hodgins, Municipal Administrator-Clerk-Treasurer

Re: Request for Repairs to Ruth Haven Drive

Background:

Surface treatment along the treated portion of Alsace Road has been postponed to 2026 due to unanticipated large culvert failures and associated expenses in 2025. A section at the turn around of Ruth Haven Drive, approximately 40 metres, has deteriorated and a culvert has failed requiring attention. This is a non-budgeted expense.

OPTIONS:

A) Replacement of the culvert, dig out of 40 metres of the roadway, application of gravel to create a stable base. Surface treatment to be applied during the Alsace Road Surface Treatment project phase associated with the location of Ruth Haven Drive.

   Approximate cost: $16,000.00

B) Hot patch with a roller without the required repairs to the road bed. This is a temporary patch that may not withstand the winter maintenance and traffic until the required construction can be completed with the Alsace Road Surface Treatment project phase associated with the location of Ruth Haven Drive is completed.

   Approximate cost: $8,500.00

Recommendation:

Staff recommend option A. This will provide the road bed improvement required for future resurfacing and ensure a stable base.

Respectfully,

Dan MacInnis, Operations Superintendent
Kris Croskery-Hodgins, Municipal Administrator-Clerk-Treasurer

Attachments: Photo 1, Photo 2



Sent from my iPhone

Photo 1



Photo 2



TOWNSHIP OF NIPISSING			
Report Prepared For:	John-Paul Negrinotti	**Application Number:**	_____
Report Prepared By:	Jamie Robinson MCIP, RPP and Patrick Townes, BA, BEd	**Applicant:**	Emily and Cody Holley
Location:	Part Lot 30, Concession 7 Ponderosa Road	**Owner:**	Lawrence Gauthier
Application Type:	Zoning By-law Amendment	**Report Date:**	July 15, 2025

A. PROPOSAL/BACKGROUND

An application for a Zoning By-law Amendment has been submitted for the subject lands located on Ponderosa Road, which are legally described as Lot 30, Concession 7 in the Township of Nipissing. There is no municipal address for the subject lands. The application was submitted by Emily and Cody Holley who are applying on behalf of the owner, Lawrence Gauthier. The subject lands are outlined in red on Figure 1.

Figure 1: Subject Lands



The surrounding land uses primarily include rural residential, rural land uses, and forested areas. The subject lands are currently vacant and there is one existing driveway located on Ponderosa Road.

The applicants are submitting the Zoning By-law Amendment application to satisfy the following condition of the approved Consent Application C2025-02:

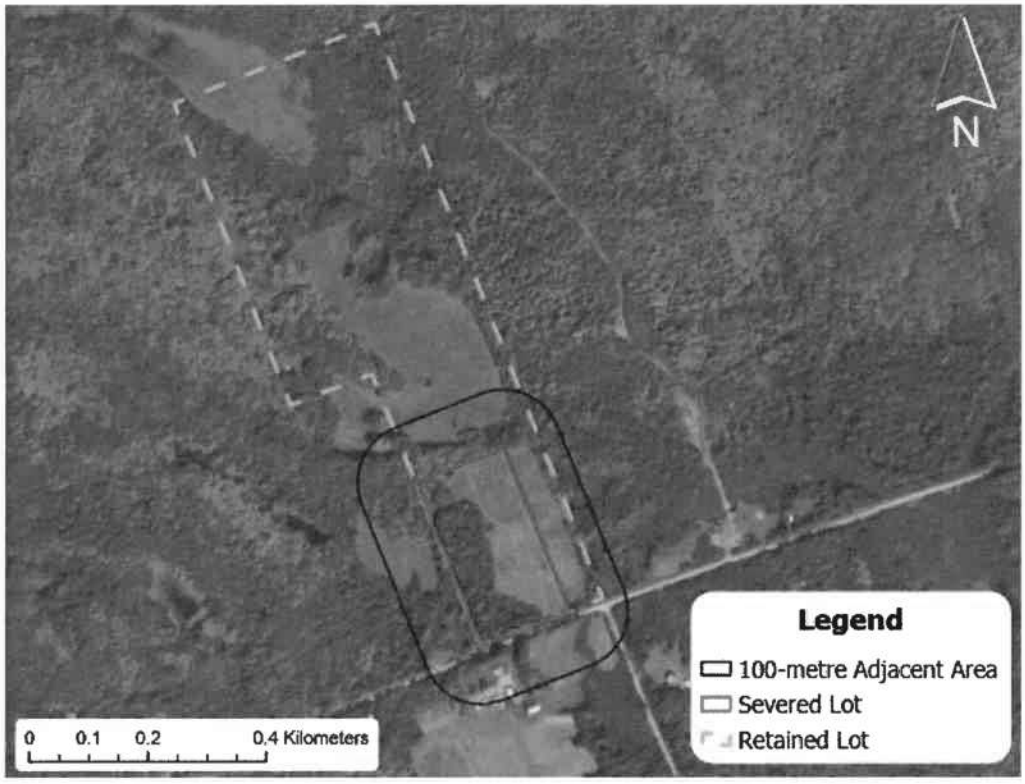
> g) *Approval of a Zoning By-law Amendment to implement the recommendations contained within the Scoped Environmental Impact Study and the Level 2 Wildland Fire Risk Assessment; and to recognize the reduced lot frontage on the proposed Retained Lot; and,*

The purpose of the proposed Zoning By-law Amendment includes the following:

- Implement recommendations from the scoped Environmental Impact Study, including rezoning a 20-metre buffer area from a wetland feature on the Severed Lot and recognizing existing and proposed driveway locations;
- Implement recommendations from the Level 2 Wildland Fire Risk Assessment, including requiring a 30-metre setback for development from the higher-risk forest types present on the Severed Lot;
- To permit a reduced lot frontage on the Retained Lot of 50 metres (proposed at 54 metres) where the Zoning By-law requires a minimum lot frontage of 60 metres; and,
- To recognize existing and proposed driveway locations on the Severed Lot and Retained Lot.

The proposed Retained Lot and the proposed Severed Lot are shown on Figure 2.

Figure 2: Proposed Retained and Severed Lots



The subject lands are primarily designated as Rural in the Official Plan. There are lands designated as Environmental Protection on the northern portion of the subject lands and on adjacent lands, generally to the east. These lands are identified as unevaluated wetlands in the Official Plan. The unevaluated wetland features are located within the Environmental Protection (EP) Zone in the Zoning By-law and the remainder of the subject lands are located within the Rural (RU) Zone. The subject lands are also identified as containing an extreme risk in regard to Wildland Fire as identified on Appendix B to the Official Plan.

As a result of the unevaluated wetland features on portions of the subject lands and on adjacent lands (within 120 metres) an Environmental Impact Study was completed to review the natural features and their ecological functions. This is a policy requirement because the unevaluated wetland features are greater than two hectares in size.

A Level 2 Wildland Fire Risk Assessment was completed due to the extreme risk rating on the subject lands and surrounding area.

The proposed Zoning By-law Amendment implements the conclusions and recommendations contained within the Environmental Impact Study and the Level 2 Wildland Fire Risk Assessment, and rezones portions of the subject lands to the Environmental Protection (EP) Zone to prohibit development in specific areas.

B. POLICY & REGULATORY REVIEW

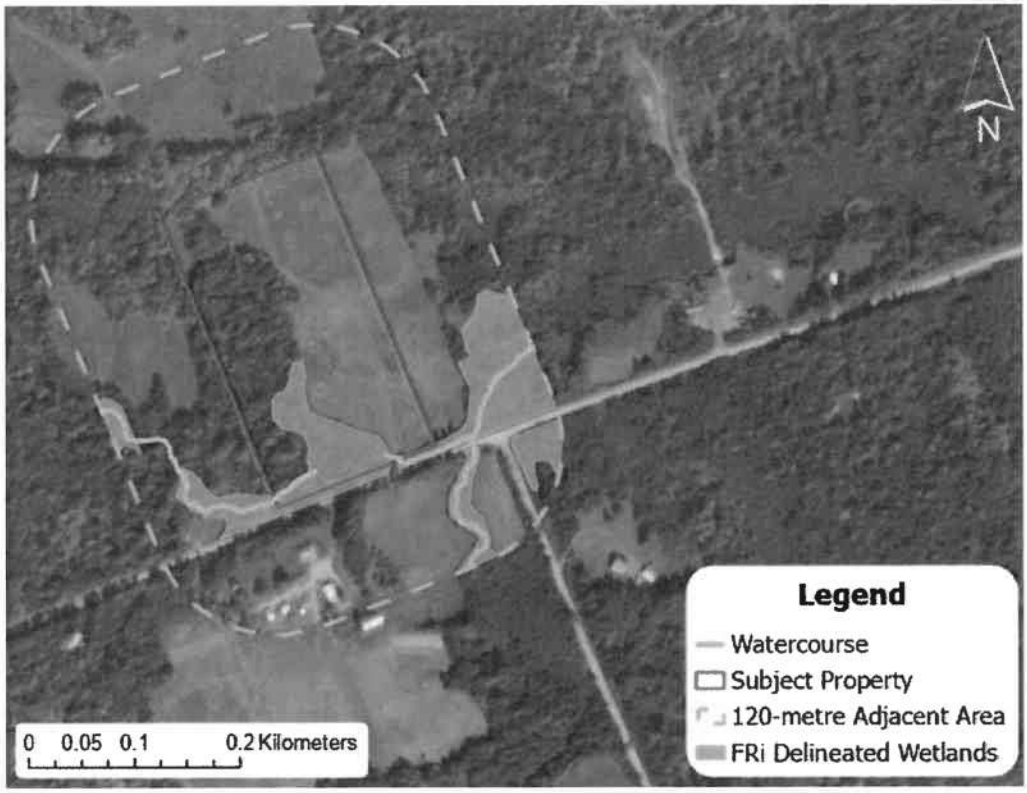
B1. Provincial Planning Statement

All applications made under the *Planning Act*, must be consistent with the Provincial Planning Statement (PPS). The subject lands are considered Rural Lands in the context of the PPS. Section 2.6.1 c) identifies residential development, including lot creation that is suitable for the provision of appropriate sewage and water systems, as a permitted use within Rural Lands. The development of rural residential uses on the subject lands are permitted in the context of the PPS.

Section 2.1 of the PPS provides for the long-term protection of Ontario's natural heritage features and areas. Section 2.1.8 of the PPS also states that that development and site alteration is not permitted on 'adjacent lands' to natural heritage features and areas unless the ecological function of the adjacent lands has been evaluated, and it has been demonstrated that there will be no negative impacts on the natural features or on their ecological functions. There are unevaluated wetlands identified on the northern portion of the subject lands and on adjacent lands to the east of the subject lands. A Scoped Environmental Impact Study was prepared by FriCorp Ecological Services to review the unevaluated wetlands adjacent to the proposed Severed Lot. The investigation identified additional wetland features on the subject lands, including lands on both the Retained Lot and the Severed Lot, adjacent to Ponderosa Road. In this case, the Environmental Impact Study resulted in an expanded wetland boundary following the site-specific investigation that was completed by the consultant.

The identified wetland boundaries adjacent to Ponderosa Road are shown on Figure 3.

Figure 3: Identified Wetland Boundaries (Environmental Impact Study)



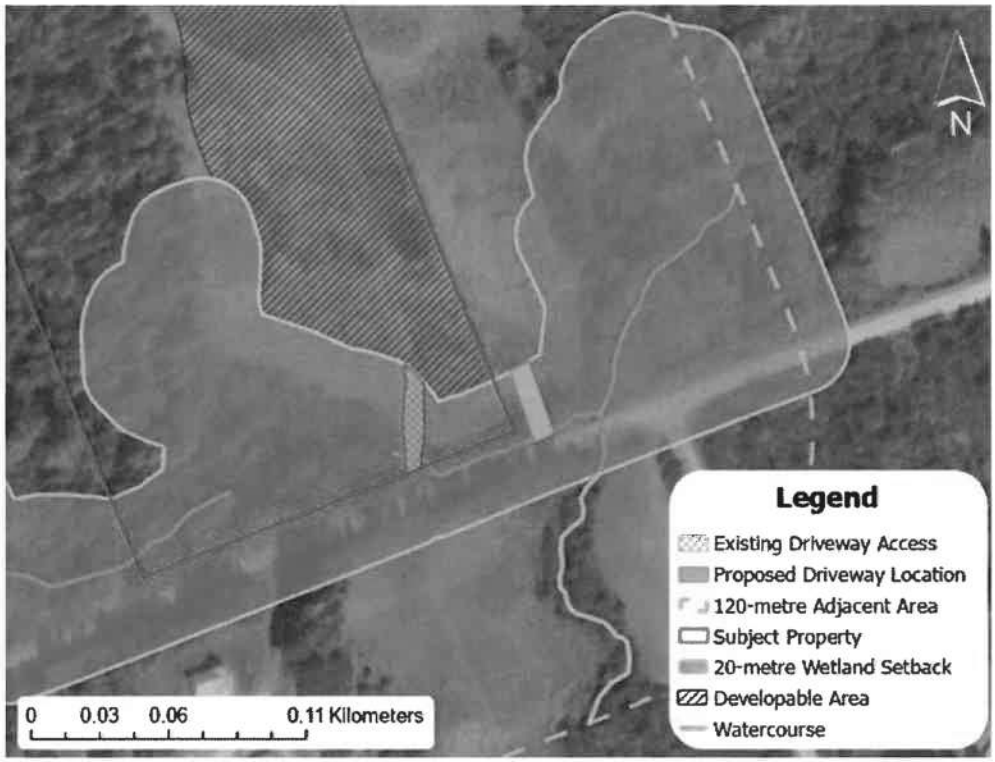
The recommendations contained within the Scoped Environmental Impact Study recommend a new driveway location for the Retained Lot and also recommends a minimum setback for development of 20 metres from the boundary of the wetlands. The new wetland boundary and the required minimum setback of 20 metres are to be rezoned to the Environmental Protection (EP) Zone. The driveway locations (existing and proposed) are also to be recognized in the site-specific rezoning based on the recommendations contained within the Environmental Impact Study that was completed.

There is also an unevaluated wetland feature identified on the northern portion of the subject lands, on the proposed Retained Lot. It does not appear that the Environmental Impact Study included recommendations for setbacks from this feature, thus a minimum setback of 120 metres is recommended to be also included in the Environmental Protection (EP) Zone.

The resulting area to be outside the proposed Environmental Protection (EP) Zone due to the presence of wetland features and their associated buffer areas is large enough to accommodate future building envelopes on the proposed lots.

The existing and proposed driveway locations are shown on Figure 4.

Figure 4: Existing and Proposed Driveway Locations



Section 3 of the PPS contains policies that address natural and human-made hazards. There are no natural or human-made hazards identified on the subject lands.

The proposed Zoning By-law Amendment application is consistent with the PPS.

B2. Township of Nipissing Official Plan

The subject lands are primarily designated as Rural in the Official Plan on Schedule A of the Official Plan. There are lands designated as Environmental Protection on the northern portion of the subject lands and on adjacent lands, generally to the east. These lands are identified as unevaluated wetlands in the Official Plan on Schedule B of the Official Plan. The subject lands are also identified as containing an extreme risk in regard to Wildland Fire as identified on Appendix B to the Official Plan.

Section 2.2.2 of the Official Plan permits residential uses in the Rural designation. The future development of single detached dwellings on the proposed lots are permitted in the Rural designation.

Section 4.22.1 of the Official Plan include policies regarding Wildland Fire. In areas identified on Appendix 'B' as having a hazardous forest type, development application must be supported by a risk assessment that identifies mitigation measures. A Level 2 Wildland Fire Risk Assessment was completed by FriCorp Ecological Services. An Assessment was undertaken on the forest

composition, and associated fuel types on and adjacent to the proposed Severed Lot. Below are the mitigation measures that were recommended:

- Maintain a 30-metre development setback from the edge of the pine ecosites (Zone 2).
- Clear all vegetation within 10-metres of development (Zone 1).
- Targeted clearing of dead and dying trees or insect damaged spruce within 30-metres of development (Zone 2).
- Prune dead branches within 2-metres of the forest floor within 30-metres of the development setback (Zone 2).
- Keep grasses mowed and watered within 30-metres of development to reduce ladder fuels (Zone 2).
- Revegetation with native hardwood species – deciduous trees and shrubs are appropriate within the 10-metre are adjacent to development (Zone 1).
- Clearing of trees and vegetation related to reducing wildland fire fuels should occur between October 1st and March 31st to protect migratory birds and other wildlife values.
- The existing access to the roadway and driveway is appropriate to maintain, other clearing within the wetland should be avoided.

Based on the recommendations contained within the completed Assessment, it is recommended that the above referenced areas be included in the Environmental Protection (EP) Zone to prohibit development in accordance with the assessment. The resulting building envelope on the subject lands is shown in green on Figure 5.

Figure 5: Recommended Building Envelope (Wildland Fire Risk Assessment)



Section 5 contains Natural Heritage Feature policies. Section 5.2 of the Official Plan applies to lands adjacent to Natural Heritage Features. Section 5.2.1 of the Official Plan provides that adjacent lands are the lands relevant to which impacts of a development must be considered. Development and site alteration on adjacent lands is not permitted unless it has been demonstrated through the completion of an Environmental Impact Study that there will be no negative impacts on the natural features and their ecological functions. This is a policy requirement because the adjacent wetland features are greater than two (2) hectares in size.

A Scoped Environmental Impact Study was prepared by FriCorp Ecological Services to review the unevaluated wetlands adjacent to the proposed Severed Lot. The recommendations of the Environmental Impact Study are referenced in the PPS section of this report and recommend that the identified wetlands and associated setback areas be protected. This is implemented through the proposed Environmental Protection (EP) Zone on the subject lands. The applicant has also demonstrated that there are building envelopes and driveway locations for the proposed lots from an environmental perspective.

The proposed Environmental Protection (EP) Zone, inclusive of the recommendations from the Environmental Impact Study and the Level 2 Wildland Fire Risk Assessment is shown on the draft Zoning By-law Amendment schedule.

The proposed Zoning By-law Amendment application conforms to the Official Plan.

B3. Township of Nipissing Zoning By-law 2020-20

The subject lands are primarily located within the Rural (RU) Zone. The wetlands on the northern portion of the subject lands are located within the Environmental Protection (EP) Zone that reflect the mapped unevaluated wetland features in the Official Plan. Adjacent lands are also located within the EP Zone.

As a result of the recommendations contained within the Environmental Impact Study and the Level 2 Wildland Fire Risk Assessment, the Environmental Protection (EP) Zone on the subject lands is proposed to be expanded. Despite the expanded Environmental Protection (EP) Zone, the proposed Severed Lot and Retained Lot will both have adequate building envelopes and access will be achieve through the recommended driveway locations.

The proposed lots exceed the minimum lot size for the RU Zone, however as indicated in Table 2, the proposed Retained Lot does not meet the minimum lot frontage requirement for the RU Zone. A Zoning By-law Amendment is also required to permit the reduced lot frontage.

Table 1: Zoning Review

Provision	RU Zone Minimum	Retained Lot	Severed Lot
Minimum Lot Frontage	60 metres	54 metres	160 metres
Minimum Lot Area	0.8 hectares	26.42 hectares	4.7 hectares

It is recommended that a minimum lot frontage of 50 metres be included in the draft Zoning By-law Amendment document for the proposed Retained Lot. Despite the reduced lot frontage, there is adequate access to the proposed Retained Lot and there does not appear to be any safety concerns as a result of the proposed driveway locations. The configuration of the proposed lots, including the lot frontages, were required to provide building envelopes on both the Retained and Severed Lots.

The proposed Retained Lot and the driveway locations are incorporated in the draft Zoning B-law Amendment as Special Zones.

C. RECOMMENDATION

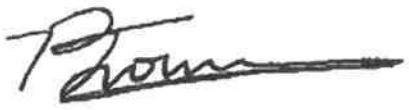
Following the review of the Zoning By-law Amendment application and the supporting technical studies, it is recommended that the proposed Zoning By-law Amendment to satisfy a condition of provisional consent be approved, and that the draft Zoning By-law Amendment be passed.

The proposed Environmental Protection (EP) Zone on the subject lands implements the recommendations of the Environmental Impact Study and the Level 2 Wildland Fire Risk Assessment that were completed. The proposed and existing driveway locations are also recognized in the proposed amendment along with the reduced lot frontage for the Retained Lot. There are adequate building envelopes on the proposed lots.

Overall, the proposed application represents good land use planning and is consistent with the PPS and conforms to the Official Plan.

Respectfully submitted,

MHBC PLANNING



Patrick Townes, BA, BEd
Associate



Jamie Robinson, BES, MCIP, RPP
Partner